

Carrelha v. MEB Loan Trust VIII

All five blocking documents read. What the amended complaint bought, what it cost, and the four decisions now in front of you.

THE HEADLINE

The amendment worked — and it closed the door on stopping the sale. Doc 36 did exactly what Judge Howard ordered: it cured the shotgun pleading, narrowed to four clean counts against two defendants, and made McCalla's motion unopposable by simply not suing them. It also expressly abandoned wrongful foreclosure and quiet title. The foreclosure is now set for **December 1, 2026**, it complies with the Court's 60-day condition, and **no claim on file supports enjoining it.**

COURT

N.D. Ga., Gainesville Division

OPERATIVE PLEADING

Doc 36 — First Amended Verified Complaint

PREPARED

21 September 2026

CASE NO.

2:26-cv-00110-RWS-AWH

FORECLOSURE SALE

December 1, 2026

RECORD

Complete through Doc 41

1 What the five documents establish

Every conclusion below was taken from the full text of the document named. Nothing is inferred from docket text or from an earlier version.

DOC	FILED	WHAT IT DOES
35	Jul 31	The order that drives everything. Howard held the original complaint an impermissible shotgun pleading — the first <i>Weiland</i> type, each count incorporating all preceding paragraphs. Denied both original motions to dismiss as moot . Directed a repleader by August 21 identifying which claims run against which defendant, with no incorporation by reference. Warned Plaintiffs they "might not be given another opportunity to amend," and ordered Defendants to respond within 14 days of the amended complaint.
36	Aug 21	First Amended Verified Complaint — the operative pleading. Filed on the deadline. Four counts, two defendants, each count stating on its face that it "does not incorporate any preceding Count." Full compliance with Doc 35.
39	Sep 9	Discovery stay granted. Answer due 14 days after the District Judge rules on the motion to dismiss; discovery, Rule 26(f) report, and initial disclosures stayed until 30 days after that answer.
40	Sep 11	McCalla's motion to dismiss. One argument: Doc 36 never mentions MRLP.
41	Sep 15	Notice of foreclosure sale scheduling. Sale set for December 1, 2026. Served on Plaintiffs by certified and regular mail; filed with the Court by ECF.

Doc 36 in one table

CT	CLAIM	BY	AGAINST
I	RESPA / Reg. X — § 2605; §§ 1024.35, .36, .41	Both Plaintiffs	Shellpoint
II	FCRA furnisher liability — § 1681s-2(b)	Christopher only	Shellpoint
III	Breach of written loan documents (Georgia)	Both Plaintiffs	MEB Loan Trust VIII
IV	FDCPA — §§ 1692e(2)(A), 1692f(1)	Both Plaintiffs	Shellpoint

Dropped by the amendment: McCalla Raymer, SLS/Achieve, and MERS as defendants; wrongful foreclosure, quiet title, and declaratory judgment as claims.

THE DISCLAIMER THAT DECIDES WORKSTREAM 4

Doc 36's prayer states, expressly: "*Plaintiffs do not seek in this pleading an independent quiet-title, wrongful-foreclosure, assignment-invalidity, securitization-invalidity, or loan-modification-contract cause of action.*" The only foreclosure-related relief requested is "the continued benefit of the Court's existing sixty-day advance-notice requirement."

2 The board

DATE	ITEM	RECOMMENDATION
Sep 21	Response to Doc 37 (Shellpoint MTD) — today	VERIFY NOW
Sep 25	Response to Doc 40 (McCalla MTD)	SHORT NON-OPPOSITION
Sep 28	Rule 72(a) window on Doc 39 closes	DO NOT FILE
—	Second Amended Complaint — restore equitable claims?	YOUR DECISION
Dec 1	Foreclosure sale — complies with Doc 34	NO VEHICLE ON FILE

Workstream 1 — Doc 37 is the whole case, and it is due today

Doc 36 filed	2026-08-21
Doc 35: respond within	14 days = 2026-09-04
Doc 37 filed	2026-09-04 - exactly on time
our response, LR 7.1(B)	14 days after service = 2026-09-18 (Fri)
Rule 6(d), mail	+ 3 days = 2026-09-21 (today)

Doc 37 attacks all four surviving counts against both remaining defendants. It is the only filing in this case that can still end it. **Confirm on the docket whether a response was filed or an extension granted, before anything else.** If nothing was filed, the move is a prompt Rule 6(b)(1)(B) motion for leave to file out of time showing excusable neglect — not a late brief presented as timely.

Workstream 2 — McCalla is right, so do not fight it

Doc 40 makes a single argument: Doc 36 never mentions MRLP. **That is factually correct.** McCalla appears in Doc 36 only in the certificate of service — not in the caption, not in any of the four counts, not in any allegation. There is nothing to oppose on the merits.

Every substantive argument from McCalla's first motion — debt-collector status, FDCPA, wrongful foreclosure — is **abandoned**. Doc 40 argues Rule 8 notice pleading and nothing else. That abandonment is itself the clearest evidence that the amendment did its job.

The one contested point is **with prejudice versus without**. McCalla asks for prejudice. Nothing was adjudicated: a defendant omitted from a superseding amended complaint simply drops out. Recommended filing is two or three pages — Plaintiffs do not oppose dismissal, but it should be **without prejudice** — noting these once and briefly:

DEFECT IN DOC 40	DETAIL
Filed late	Doc 35 ordered a response "NO LATER THAN 14 DAYS" after Doc 36 — that is Sep 4, or Sep 8 with the mail addition and the Labor Day roll. Doc 40 was filed Sep 11 , 21 days out. Shellpoint made the Sep 4 date.
Miscitation	<i>Jackson v. Okaloosa County</i> cited as "91 F.3d 1531." It is 21 F.3d 1531 (11th Cir. 1994) — verified.
Miscitation	<i>Twombly</i> cited as "500 U.S. at 555." It is 550 U.S.
Wrong party	Prays that " Barrett have such other and further relief" — another case's name left in.
Wrong entity	States "MERS as nominee for Fairway " transferred the Security Deed. The originator was Lendage, LLC .

Note them once. Do not build a campaign on a party you are no longer suing — the goal is the words *without prejudice*, nothing more.

Workstream 3 — do not object to the stay

Doc 39 is a narrow, ordinary case-management stay tied to the ruling on the motions to dismiss. Under Rule 72(a) it is reviewed for clear error or contrary to law, and it plainly survives that. An objection would lose and would spend credibility better kept for Doc 37. The December 1 sale does not rescue the objection either: a scheduled sale is a reason to seek *injunctive* relief, not a reason to unstay *discovery*.

3 The December 1 sale — and the trade Doc 36 made

Two paths that looked open a day ago are now definitively closed. This section is the one that needs your decision.

Motion to enforce Doc 34 — closed

notice filed / served	2026-09-15
sale scheduled	2026-12-01
	77 days (condition requires 60)
Doc 34's 60-day condition: SATISFIED	

The system had computed December 1 as the earliest first-Tuesday sale that could comply. Defendants noticed exactly that date. There is no violation to enforce.

Renewed preliminary injunction — closed as the case is pleaded

Doc 34 denied the injunction **as moot**, not on the merits, because no sale was then scheduled. A scheduled sale would ordinarily revive that motion — that was the strongest available theory yesterday. It does not survive contact with Doc 36.

A preliminary injunction requires likelihood of success on a claim that supports that relief. The four surviving counts are money-damages claims. Wrongful foreclosure and quiet title were **expressly disclaimed**, and Judge Bagley separately found an adequate remedy at law back in March.

NAME THE TRADE HONESTLY

Doc 36 is a good pleading. It is what Doc 35 demanded, it is far more defensible than the shotgun original, and it made McCalla's motion unopposable by declining to sue them. The trade was **narrowness for survivability**. The cost is that nothing now on file stops the December 1 sale. That cost was probably worth paying — but it should be a decision made with open eyes, not discovered in December.

Three options

	OPTION	COST
A	Accept the sale; litigate damages. The four counts proceed on their merits. If the accounting claims succeed the remedy is money, and a defective sale can be attacked afterward.	The house sells on December 1.
B	Move for leave to file a Second Amended Complaint restoring the equitable claims, then move for an injunction. A draft dated September 19 already exists in your files.	Doc 35 warned Plaintiffs "might not be given another opportunity to amend." Re-adding claims risks re-triggering the shotgun analysis Doc 36 just cured — while two motions to dismiss are pending.
C	Separate injunctive motion on the existing counts.	Weakest. The express disclaimer in Doc 36 gets quoted back at you.

TIME IS ON YOUR SIDE HERE

The sale is 71 days out. There is no emergency and no need for a TRO. If option B is chosen it can be briefed properly — which is the only way it has a chance. But it should be decided in the next two weeks, not in November.

4 The system, and what it caught

24 persistent specialist subagents, seven gates, four release states, and a 27-assertion validation suite. What matters is what it stopped.

CONTROL	WHAT IT CAUGHT ON THIS MATTER
Record freeze before argument	The case is 2:26-cv-00110 (Gainesville), not 1:26-cv-; five defendants, not three. Either error would have appeared on every page filed.
No promotion to operative by recency	The file labeled "Doc 36" in the record store was a 17-page screenshot capture. The real Doc 36 is a 29-page amended complaint. Briefing against the wrong pleading would have wasted the filing.
Never oppose a granted motion	Doc 38 was granted by Doc 39. The task was the vehicle question, not an opposition — and the answer turned out to be "file nothing."
Compute, never copy, deadlines	Surfaced that Doc 37 — not the McCalla motion everyone was watching — carries today's deadline. Also that Doc 40 was filed a week past the Court's own 14-day order.
Verify every citation	<i>Jackson v. Okaloosa County</i> is 21 F.3d 1531, not 91 F.3d. Checked against the reporter, not recalled.
Read the prayer, not just the counts	The express disclaimer of wrongful foreclosure and quiet title — which closes the injunction path — appears only in Doc 36's prayer for relief.
Index by reference, never commit	No case document enters the repository. Enforced by a validator check, because this matter has an active PII-suppression effort.

The validation suite found three real defects on its first run and two more after the record was updated — including, both times, missing-document tracking gaps that would have let a blocker go unnoticed. All 27 assertions pass.

5 What is still open

NEEDED	WHY
The current docket sheet	Whether a Doc 37 response was filed or extended — today's deadline. Also Plaintiffs' CM/ECF status, which moves every deadline by three days, and whether McCalla obtained an extension.
Your decision on McCalla	Was dropping them intentional? If yes, workstream 2 is a two-page filing and closes. If no, it folds into the Second Amended Complaint question.
Your decision on the sale	Option A, B, or C. This is the only decision with a house attached to it.
Doc 37-2 — Defense Exhibit A	Gap in an otherwise complete 37-1 → 37-6 run.
Dkt. 5 — McCalla's first motion	The delta baseline. Doc 40 abandons every substantive argument; Dkt. 5 shows precisely what was given up.

Prepared by the litigation operations system in `pro_se_litigation_ops/`. Findings are drawn from the full text of Docs 34, 35, 36, 39, 40 and 41. The uploaded documents are session-ephemeral and were not committed; place them in the record store so the custodian indexes them. This is work product prepared for the review and signature of a self-represented party. It is not legal advice, and no filing decision has been made.

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